

Subject: Re: Request: 2025-FSA-08422-F Bocinsky-Final Response
Date: Thursday, August 7, 2025 at 09:24:26 Mountain Daylight Time
From: Bocinsky, Kyle
To: SM.FPAC.BC.FOIA
CC: Nagel, Carol - FPAC-FBC, ND, Vander Linden, Christina - FPAC-FBC, MO, Nguyen, Hani - FPAC-FBC, MN

Good morning!

Thank you all for responding to this request, and for uploading those files. However, I believe they are incomplete. One critical part of assessing eligibility is not only the date of the qualifying drought, but also the type of qualifying drought.

Specifically, FSA Guidance document 1-LFP Amendment 6 (https://www.fsa.usda.gov/Internet/FSA_File/1lfp-a6.pdf) Paragraph 23B indicates, “The National Office will notify State and County Offices eligible for LFP by posting a list of eligible counties by pasture type every Thursday at <https://usdagcc.sharepoint.com/sites/FPAC-FSA-FPAC-FSA-LFPStateProgramSpecialists/LFP%20Eligibility%20Reports/Forms/AllItems.aspx>” under “LFP Eligible Counties.” The LFP Eligible Counties Report contains the following columns:

- State
- County
- Program Year
- Pasture Type
- D2 Qualifying Drought Start and End Dates (duration of 8 consecutive weeks)
- D3a Qualifying Drought Start and End Dates (duration of 1 day)
- D3b Qualifying Drought Start and End Dates (duration of 4 non-consecutive weeks)
- D4a Qualifying Drought Start and End Dates (duration of 1 day)
- D4b Qualifying Drought Start and End Dates (duration of 4 non-consecutive weeks)
- Date of Qualifying Drought
- Drought Factor
- Grazing Period Start and End Dates
- Maximum Eligible Payment Months
- Payment Factor.

Among the files you uploaded, only the 2009–2011 file included start and end dates for D2, D3a, D3b, and D4 qualifying droughts (it didn’t split D4a and D4b, but it should have). Were you able to find those data for all the other years? They are essential for the analysis I’m doing with support from the USDA OCE.

Thank you!

Best,
Kyle

Kyle Bocinsky, PhD

Director of Climate Extension, Montana Climate Office, University of Montana
Asst. Research Professor, Society and Conservation, University of Montana

The University of Montana acknowledges that we are in the aboriginal territories of the Salish and Kalispel people. We honor the path they have shown us in caring for this place for the generations to come.

From: SM.FPAC.BC.FOIA <SM.FP.FOIA@usda.gov>

Date: Thursday, August 7, 2025 at 09:01

To: Bocinsky, Kyle <kyle.bocinsky@umontana.edu>

Cc: Nagel, Carol - FPAC-FBC, ND <carol.nagel@usda.gov>, Vander Linden, Christina - FPAC-FBC, MO <christina.vanderlinden@usda.gov>, Nguyen, Hani - FPAC-FBC, MN <hani.nguyen@usda.gov>

Subject: Request: 2025-FSA-08422-F Bocinsky-Final Response

Mr. Bocinsky,

This responds to your Freedom of Information Act (FOIA) request dated July 15, 2025 (copy attached), and assigned control number 2025-FSA-08422-F.

In response to your request for, Livestock Forage Disaster Program Eligibility data from 2008-2024, this data has now been updated to the public site, located here:

<https://www.fsa.usda.gov/resources/programs/livestock-forage-disaster-program-lfp/maps>

With respect to the portion of your request for the same data for year 2008, a thorough search was conducted for the records you seek, however no records were found.

If you believe that there are, in fact, records responsive to your request in files maintained by FSA, you may appeal to the FSA Administrator. The Appeals and Litigation Division must receive your written appeal within ninety (90) calendar days of the date of this letter. Please include in the appeal the location of the responsive records, if it is known to you, and the reason why you believe that there are records responsive to your request in FPAC-BC files. Be sure to include a copy of your initial request letter in your appeal package. You may submit your appeal electronically to FSAFOIAappeal@wdc.usda.gov or by mail. If mailing the appeal, clearly mark both your letter and its envelope with the words "Freedom of Information Act Appeal." Mail your appeal package to the following address:

FARM PRODUCTION AND CONSERVATION BUSINESS CENTER
ATTENTION: APPEALS AND LITIGATION DIVISION
1400 INDEPENDENCE AVENUE SW. ROOM 3243-S
MAIL STOP – 0570
WASHINGTON, D.C. 20250-0570
TELEPHONE: (202) 690-3297
EMAIL: fsafoiaappeal@usda.gov

You may seek dispute resolution services from the FOIA liaison. Contact information for the FOIA liaison is:

FPAC – BC PUBLIC AFFAIRS LIAISON
EMAIL: SM.FP.FOIA@USDA.GOV

You may contact the Office of Government Information Services at the National Archives and Records Administration to inquire about the FOIA mediation services they offer. Contact information for the Office of Government Services is:

OFFICE OF GOVERNMENT INFORMATION SERVICES
NATIONAL ARCHIVES AND RECORDS ADMINISTRATION
8601 ADELPHI ROAD-OGIS
COLLEGE PARK, MARYLAND 20740-6001
PHONE: (202) 741-5770
TOLL FREE: (877) 684-6448
FAX: (202) 741-5769
EMAIL: ogis@nara.gov

Contacting the FOIA Public Liaison or the Office of Government Information Services does not affect your right to administratively appeal to FSA Administrator.

Request 2025-FSA-08422-F is officially closed.

We trust the information fully satisfies your request. If you have questions concerning this request, please contact Government Information (GI) Specialist Carol Nagel at 701-530-2107. If GI Specialist Carol Nagel is not available, please contact GI Specialist Christina Vander Linden at 816-823-2669, or GI Specialist Hani Nguyen at 763-388-0490. We can also be reached at the group e-mail address SM.FP.FOIA@usda.gov.

Sincerely,

Patrick McLoughlin

Patrick McLoughlin
FOIA Officer
Farm Production and Conservation

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